

Priyanka Singh vs Sunil Kumar Singh Opp. Party on 6 December, 2022

Author: Gautam Kumar Choudhary

Bench: Gautam Kumar Choudhary

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IN THE HIGH COURT OF JHARKHAND AT RANCHI
C. M. P. No. 194 of 2021

Priyanka Singh		...		Petitioner
	Versus			
Sunil Kumar Singh		...		Opp. Party

CORAM: HON'BLE MR. JUSTICE GAUTAM KUMAR CHOUDHARY

For the Petitioner : M/s Manjul Prasad, Sr. Advocate & Deepak Kr. Bharti, Advocate For the Opp. Party : Mr. Sachin Kumar, Advocate

Oral Order 16 / Dated : 06.12.2022

1. The instant civil misc. petition has been filed under Article 227 of the Constitution of India by the wife (petitioner no.2 in Court below) for quashing the judgment dated 11.02.2021 and decree dated 19.02.2021 passed by the Principal Judge, Family Court, Jamshedpur in Original (Matrimonial) Suit No. 514 of 2020 whereby and whereunder, the suit has been decreed for divorce by mutual consent under Section 13-B(1)&(2) of the Hindu Marriage Act, 1955.

2. By order dated 27.11.2020 learned Court below referred the matter to the mediation center for conciliation during the statutory period of six months commencing from 27.11.2020 to 27.05.2021. Mediation center was directed to send the report at the end of the statutory period and in the event of successful mediation, the report could be sent before the completion of the period.

3. The suit for divorce by mutual consent was decreed after considering a joint petition filed for waving the statutory period of six months. The learned Court also considered the mediation report dated 9.12.2020 wherein both parties agreed to dissolve their marriage by mutual consent and petitioner assured that she will not lay any claim against petitioner no.1 on alimony or maintenance.

Petitioner also agreed that all the three children born from the wedlock will reside with their father. Both parties filed their examination in chief on affidavit, wherein it has been stated that they have settled their issues related to dowry, maintenance etc. before the learned mediator. On the basis of these materials the matrimonial suit was decreed and the marriage was dissolved, after waiving the statutory period of six months in the light of the judgment passed by Hon'ble the Supreme Court in Amardeep Singh Vs. Harveen Kaur {2017} 8 SCC 746}. PETITIONER'S ARGUMENT

4. The order has been impugned mainly on the ground that by order dated 27.11.2020 the court below through video conferencing referred the matter for mediation and fixed the date in the month of May, 2021 and directed both sides to appear before the mediation center. It has been alleged that the opposite party-husband without knowledge of the petitioner got the signature of the petitioner-wife on a blank sheet of papers stating therein that the issue related to dowry/stridhan, maintenance, past, present and future and permanent alimony etc. has been settled. It is further averred that the Principal Judge, Family Court without making any enquiry, waived the statutory period and decreed the matrimonial suit. It is averred that the wife had never appeared before the Mediator physically nor she had made any signature on the settlement. The entire settlement is one sided and against the law as laid down in 2021 SCC Online SC 1270 (Amit Kumar Vs. Suman Beniwal) and (1997) 6 SCC 450 (Dwarikesh Sugar Industries Ltd.).

5. To sum of the following main pleas have been raised:

I. The judgement and decree of divorce has been passed without passing specific order on waiver and recall petition and without conducting any enquiry. II. Waiver, recall, enquiry, hearing and judgment of divorce have all been clubbed by the impugned order in one single day.

III. Both the parties lived in the same house at Jamshedpur, which cannot be termed judicial separation under section 13-B(1) of the Hindu Marriage Act. IV. The family court was under a duty to see to it that it had fulfilled its duty in accordance with Section 23 (1)(bb) of the Hindu Marriage Act. V. The settlement was not carried out in letter and spirit of Section 9 Family Court Act, as the mediation was done online only on one date and the settlement has also not been signed by either of the parties.

RESPONDENT'S ARGUMENT

6. It is submitted by learned counsel for the respondent that at no point of time the application for divorce by mutual consent was ever withdrawn by the petitioner. Both sides appeared before the Mediation Centre, after filing a proper Vakalatnama, a joint petition to waive off the statutory period was filed supported by separate affidavit on the basis of which the order for divorce by mutual consent has been passed by a detailed and well-reasoned order.

7. With regard to the nature of enquiry, it is submitted that Section 13-B of the Hindu Marriage Act does not contemplate a fishing enquiry whenever petition for divorce for mutual consent is filed. As a matter of fact, both sides appeared before the court below and filed their examination-in-chief and

thereafter on mutual consent the order has been passed. The present case is a product of afterthought.

8. If the petitioner asserts that fraud has been played in passing the order, it is open to the petitioner to move before the court below by filing appropriate petition, which has to be pleaded and proved. Reliance in this regard has been placed on Union of India & Anr. Vs. M/s K.C. Sharma & Co. & Ors. (Civil Appeal No. 9049-9053 of 2011). During the course of hearing, screen shot of both the parties was taken which is annexed with the case records.

9. Before advertng to the arguments advanced on behalf of both sides it will be desirable to look at the list of dates culminating into the divorce by mutual consent:

a. 9.5.2005-Date of marriage b. 17.10.2020- OA 514/2020 for divorce by mutual consent c. 27.11.2020 - Case taken up by video-conferencing, 09.12.2020 fixed for mediation.

d. 7.1.2021 - Petition filed for order for waiving of the period referred in order dated 11.1.2021 e. 15.1.2021 - Date recall petition filed is referred in order sheet dated 18.1.2021 f. 6.2.2021-- Evidence on oath filed is referred to in order sheet dated

10.2.2021 g. 11.2.2021 - Judgment and decree by mutual consent. ANALYSIS

10. Law is settled on the point that a family court has power to waive off the statutory period of six months in appropriate cases and decree the suit for divorce by mutual consent. The object is to relieve the parties from acrimonious relationship which has no prospect of being salvaged and to bring to an end a festering litigation between the parties. This power is to be exercised cautiously and in the light of the guidelines laid down by Hon'ble Supreme Court in Amardeep Singh v. Harveen Kaur, (2017) 8 SCC 746

19. Applying the above to the present situation, we are of the view that where the court dealing with a matter is satisfied that a case is made out to waive the statutory period under Section 13-B(2), it can do so after considering the following:

(i) the statutory period of six months specified in Section 13-B (2), in addition to the statutory period of one year under Section 13-B (1) of separation of parties is already over before the first motion itself;

(ii) all efforts for mediation/conciliation including efforts in terms of Order 32-A Rule 3 CPC/Section 23(2) of the Act/Section 9 of the Family Courts Act to reunite the parties have failed and there is no likelihood of success in that direction by any further efforts;

(iii) the parties have genuinely settled their differences including alimony, custody of child or any other pending issues between the parties;

(iv) the waiting period will only prolong their agony.

The waiver application can be filed one week after the first motion giving reasons for the prayer for waiver. If the above conditions are satisfied, the waiver of the waiting period for the second motion will be in the discretion of the court concerned.

11. Section 13 (2) of the Family Court's Act provides that no appeal shall be maintainable from a decree or order passed by the Family Court with the consent of the parties. In view of the above provision the instant writ petition under Article 227 of the Constitution of India has been filed. This Court while exercising supervisory jurisdiction under Article 227 cannot sit in as a Court of appeal over the Judgment and decree passed by the Court below. The limited point for consideration is whether the learned Court below has followed the mandate of law while passing the impugned order.

12. There is no dispute whatsoever that application for divorce by mutual consent had been filed by both the sides. The cooling off period was from 27.11.2020 to 27.05.2021.

13. The learned Family Judge directed both the sides to appear before the mediation center on 9.12.2020. From the photo-copy of the mediation report signed only by the mediator, it appears that mediation by virtual mode was held on 09.12.2020 and the mediator, reported that both the parties entered into settlement agreement and signed over it through whatsapp. The screen shots and photo-copy of signature of both the sides on the plain sheet of paper is annexed with the mediation report. The term of settlement has been detailed in the mediation report.

14. On 11.1.2021 a joint petition duly signed by both the sides, supported by separate affidavit is filed with a prayer to waive the cooling off period.

15. Statement on oath of Priyanka Singh was filed on 6.2.2021, wherein it is stated that despite the gap of three months they could not reconcile the differences and continue to stay away from the society of each other. They were living separately from the company of each other since April 2018, and leading their personal life separately. They were unable to adjust with each other due to temperamental differences and various other reasons. The claims regarding the dowry/stridhan, maintenance and permanent alimony etc. was settled by agreement.

There being no fraud, the decree is maintained.

However, the welfare of the children and reasonable maintenance of the wife are larger issues and this decree will not come in the way.

With this observation the civil miscellaneous petition is rejected.

(Gautam Kumar Choudhary, J.) AKT